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Judgment Sheet
**IN THE LAHORE HIGH COURT
MULTAN BENCH MULTAN**

JUDICIAL DEPARTMENT

Murder Reference No.94 of 2018

(The State Vs. Irfan Alias Shani)

Criminal Appeal No. 522 of 2014

(Irfan alias Shani Vs. The State and another)

Criminal Appeal No. 535 of 2014

(Ali Abbas Vs. The State and another)

Criminal Appeal No. 550 of 2014

(Shakeel Ahmad Vs. The State and two others)

Date of hearing: 18.06.2019.
Appellants by: M/S James Joseph and Ch. Umar Hayat, Advocates.
State by: Ch. Muhammad Akbar, Deputy Prosecutor General.
Complainant by: Ch. Tahir Mehmood, Advocate

SADIQ MAHMUD KHURRAM, J. – The appellants namely Irfan alias Shani son of Muhammad Hussain and Ali Abbas son of Muhammad Shareef were tried by the learned Additional Sessions Judge, Multan in case FIR No. 280 of 2009 dated 25.03.2009 registered at Police Station Gulgasht, Multan under sections 302, 394, 411 PPC for committing the Qatl-i-Amd of Nadir Aqeel (deceased). The learned trial court vide judgment dated 28.11.2014 convicted Irfan alias Shani son of Muhammad Hussain and Ali Abbas son of Muhammad Shareef (convicts) and sentenced them as infra:

Irfan alias Shani son of Muhammad Hussain:

Death under section 302(b) PPC as Tazir for committing Qatl-i-Amd of Nadir Aqeel (deceased) and pay Rs.2 Lac as compensation under section 544-A, Cr.P.C. to the legal heirs of the deceased, in case of default thereof, the convict was further directed to undergo six months of simple imprisonment. The convict was ordered to be hanged by his neck till dead.

Ali Abbas son of Muhammad Shareef:

Imprisonment for life under section 394 PPC with fine of Rs. 100,000/-/- and in default thereof, to further undergo six months of simple imprisonment.

Co-accused of the appellants namely Azhar Waheed son of Abdul Waheed was however acquitted of the charges by the learned trial court.

2. Feeling aggrieved, Irfan alias Shani son of Muhammad Hussain (convict) lodged Criminal appeal No.522 of 2014 against his conviction and sentence. Feeling aggrieved, Ali Abbas son of Muhammad Shareef (convict) lodged Criminal appeal No.535 of 2014 against his conviction and sentence. The learned trial court submitted Murder Reference No.94 of 2018 under section 374 Cr.P.C. seeking confirmation or otherwise of the sentence of death awarded to appellant Irfan alias Shani son of Muhammad Hussain. The complainant of the case lodged Criminal appeal No.550 of 2014 against the acquittal of the Irfan alias Shani son of Muhammad Hussain of the charge of section 394 of PPC and against Ali Abbas son of Muhammad Sharif of the charge under section 302 PPC. We intend to dispose of all the criminal appeals mentioned above and Murder Reference No.94 of 2018 through this single judgment.

3. According to the prosecution story, set forth in the oral statement (Exh.PD) of Shakeel Ahmad (PW-5) the deceased Nadir Aqeel was his nephew who had taken admission in the Gull Muhammad Academy for preparing for the exam of B.A to whom he had come to meet along with Tanveer Ahmad, his brother (PW-8) and one Muhammad Akbar (PW-

12). It was further recorded that on the night of occurrence i.e 25.03.2009 at about 9.00 p.m he along with his brother Tanvir Ahmad (PW-8) , Muhammad Akbar ((PW-12) and Nadir Aqeel deceased went to take dinner in the area of “*Gol Bagh*” and after taking dinner Nadir Aqeel deceased purchased a book from the “*Gol Bagh*” area and were all returning thereafter to the hostel when about 10.40 p.m they reached the main road opposite Govt. Model High School/Education University when on one motorcycle of red colour two unknown accused of wheatish colour, average height and of young age suddenly came there, who were identified in the light and one of the unknown accused raised a lalkara to hand over all the belongings to them whereupon Shakeel Ahmad (PW-5) handed over to him Rs. 1500/-. It was further recorded that Muhammad Akbar (PW-12) and Nadir Aqeel (deceased) offered resistance whereupon one of the accused person made a straight fire hitting the pace of Nadir Aqeel (deceased) and exiting from the back of the head. Nadir Aqeel (deceased) died at the spot and the local police was informed. The said oral statement (Exh.PD) of Shakeel Ahmad (PW-5) was reduced into writing by Muhammad Ishaq, S.H.O (PW-14) and formal FIR (Exh. PD/1) was registered at the Police Station by Fiaz Hussain, ASI (PW-4). Subsequently on the next day i.e 26.03.2009 the complainant and his witnesses named the appellants and their co-accused Azhar Waheed as being involved in the occurrence who were arrested on the said information and test identification parade was conducted on 11.04.2009 at District Jail, Multan with respect to the appellants wherein the witnesses correctly identified the appellants as being the ones who had taken part in the occurrence.

4. The learned trial court framed charge against the appellants on 19.11.2009 and thereafter the charge was amended on 09.06.2014, and also on 28.11.2014, to which the appellants pleaded not guilty and claimed trial.

5. The prosecution/complainant in order to prove its case got recorded statements of **fourteen** witnesses. Shakeel Ahmad (PW-5), Tanvir Ahmad (PW-8) and Muhammad Akbar (PW-12) gave evidence regarding the ocular account. Mehvish Jabeen TASI (PW-1) stated that on 12.06.2009 the Investigating Officer handed over to her one sealed parcel said to contain pistol of 30-bore which she handed over to Nasir Ali 1876/C (PW-11) on 9.06.2009 for its onward transmission to the office of Punjab Forensic Science Agency, Lahore. Muhammad Aslam 408/C (PW-2) stated that on 24.05.2009 Ali Abbas, appellant led to the recovery of Rs.1500/- which was taken into possession through recovery memo (Exh.PA) and on 27.05.2009, both the appellants got recovered motorcycle which was taken into possession through recovery memo (Exh.PB). Fiaz Hussain, ASI (PW-4) recorded the formal FIR(Exh.PD/1) and on 26.03.2009 received two sealed parcels said to contain empty and blood stained earth which he on 03.04.2009 handed over to Nasir Ali, 1876/C (PW-11). Irfan Hayat, Drafts man (PW-6) prepared the site plan (Exh.PK) of the place of occurrence. Shaukat 2321/C (PW-7) stated that on 26.03.2009 he received the last worn cloth of the deceased as well as book of Islamiyat which was taken into possession through recovery memo (Exh.PG). Akhtar Hussain Shah, (PW-9) investigated the case from 26.03.2009 till 08.04.2009 and detailed the facts of his case in his statement before the learned trial court. Syed Liaqat Ali, Special Judicial Magistrate (PW-10) supervised test identification proceedings and prepared his report (Exh.PM). Nazir Ahmad, SI (PW-13) investigated the case from 26.03.2009 till 27.05.2009 and detailed the facts of the investigation in his statement before the learned trial court. Muhammad Ishaq SHO (PW-14) stated that on 25.03.2009 he recorded the oral statement (Exh.PD) and sent the same for registration of FIR.

6. The prosecution got examined Dr. Tariq Nawaz Babar (PW.-3), who was posted as Demonstrator, Forensic Department of Nishtar Medical College, Multan., and on 26.03.2009 conducted the

postmortem examination of Nadir Aqeel (deceased). Dr. Tariq Nawaz Babar (PW-3) while examining Nadir Aqeel (deceased) observed as under:

“INJURIES:

1. *A lacerated wound measuring 01 cm x $\frac{3}{4}$ cm with burnt inverted margins and blackening around in the area of 6x6 cm below the left angle of the lower jaw going inside the neck from above down ward and obliquely backward(wound of entry) On dissection: bullet traveled down ward and obliquely backward through neck by lacerating the trachea, esophagus, neck muscles and neck vessels entered in the upper part of right lung and made an exit by making a hole to inferior fossa of right scapula and 5th intercostals space on right side of the back of the chest by making an aperture of $\frac{3}{4}$ x $\frac{3}{4}$ cm with everted margins. (Wound of exit). Skull and vertebrae, membranes, brain and spinal cord was not opened, scalp was healthy. Little quantity of blood was present in the chest cavity. Heart was empty, neck vessels were lacerated. Blood was present in the mouth as well as in stomach. Bladder was empty. Rest of all organs were healthy.*

OPINION:

Fire arm injury ruptured the trachea, esophagus, neck muscle and vessels upper part of right lung, choked the mouth and produced asphyxia by hampering the respiration and became the cause of death after haemorrhage and shock instantaneously in ordinary course of nature. Firearm injury was antemortem in nature. Probable duration between injury and death was instantaneous and between death and postmortem was 12 to 18 hours.”

7. The learned ADPP closed the prosecution evidence on 19.04.2014 after tendering the reports Chemical Examiner for Punjab, Multan (Exh.PV) and of Forensic Science Laboratory Lahore (Exh. PW).

8. After the closure of prosecution evidence, the learned trial court examined appellants namely Irfan alias Shani son of Muhammad Hussain and Ali Abbas son of Muhammad Shareef under section 342 Cr.P.C. and in answer to question why this case against you and why the PWs have deposed against you, they replied that they were innocent and

had been falsely involved in the case. They further stated that they had not committed the occurrence and had been made a scapegoat in the case in order to show efficiency by the police. The appellants namely Irfan alias Shani son of Muhammad Hussain and Ali Abbas son of Muhammad Shareef opted not to get themselves examined under section 340(2) Cr.P.C however Irfan alias Shani (appellant) adduced copy of report of 15 Police Service Counter (Exh.DB) as evidence in his defence.

9. On the conclusion of the trial, the learned Additional Sessions Judge, Multan convicted and sentenced the appellants as referred to above.

10. The contention of the learned counsels for the appellant precisely is that whole case is fabricated and false. That the prosecution remained unable to prove the facts in issue and did not produce any unimpeachable, admissible and relevant evidence. They further contended that the statements of Shakeel Ahmad (PW-5), Tanvir Ahmad (PW-8) and Muhammad Akbar (PW-12) were not worthy of reliance. They further contended that the appellants are neither nominated in the FIR nor in the statements of witnesses recorded on the first day and the test identification parade conducted was full of procedural defects and of no legal worth and valid. They also argued that the medical evidence was not supportive of the prosecution case. They also argued that the recoveries were result of fake proceedings. They finally submitted that the prosecution has totally failed to prove the case against the accused beyond the shadow of doubt.

11. On the other hand, learned Deputy Prosecutor General along with the learned counsel for the complainant contended that the prosecution has proved its case beyond shadow of doubt by producing independent witnesses. Learned counsels further argued that the deceased died as a result of injuries suffered at the hands of the appellants in a joint enterprise. They further contended that the medical evidence also

corroborated the statements of Shakeel Ahmad (PW-5), Tanvir Ahmad (PW-8) and Muhammad Akbar (PW-12). They further argued that the recovery of pistol 30-bore from Irfan alias Shani (appellant) also corroborated the ocular account and recovery of Rs.1500/- from Ali Abbas also corroborated the occurrence. They contended that there was no occasion for the prosecution witnesses, who were related to the deceased, to substitute the real offenders with the innocent in this case. Lastly, they prayed for the rejection of appeal.

12. We have heard the learned counsels for the appellants and learned Deputy Prosecutor General along with the learned counsel for the complainant and with their assistance perused the record and evidence recorded during the trial carefully.

13. The whole prosecution case revolves around the statements of Shakeel Ahmad (PW-5), Tanvir Ahmad (PW-8) and Muhammad Akbar (PW-12). These witnesses namely Shakeel Ahmad (PW-5), Tanvir Ahmad (PW-8) and Muhammad Akbar (PW-12) were related to each other. Their relationship with the deceased is also on record. Shakeel Ahmad and Tanvir Ahmad are brothers inter se and deceased was son of their brother. Shakeel Ahmad (PW-5), Tanvir Ahmad (PW-8) and Muhammad Akbar (PW-12) further stated in their cross-examination that the witnesses namely Shakeel Ahmad (PW-5), Tanvir Ahmad (PW-8) and Muhammad Akbar (PW-12) were not the residents of the place of occurrence and were residents of Rang Pur District Muzaffargarh which was at a distance of 100 kilometers away from the place of occurrence. It was stated by Tanvir Ahmad (PW-8) in his cross-examination that he was permanent resident of Rang Pur which was at a distance of 100 kilometers away from the place of occurrence. It is an admitted position that none of the prosecution witnesses namely Shakeel Ahmad (PW-5), Tanvir Ahmad (PW-8) and Muhammad Akbar (PW-12) had their residences or their houses at the place of occurrence. They were all “chance witnesses”. We have also perused the scaled site plan (Exh.PK)

as prepared by Irfan Hayat, draftsman (PW-6) and the rough site plan (Exh.PN) as prepared by Nazir Ahmad, SI (PW-13) and find that neither any house nor any shop belonging to the three eye witnesses is marked in the same. More importantly no place has been pointed out in the said site plans where prior to the occurrence the witnesses namely Shakeel Ahmad (PW-5), Tanvir Ahmad (PW-8) and Muhammad Akbar (PW-12) and the deceased had taken dinner nor any shop has been pointed out as to from where the deceased had allegedly bought book of Islamiyat. A further doubt has crept into the case of the prosecution with respect to the reason mentioned by the witnesses of being present at the place of occurrence regarding the purchase of the book of Islamiyat. As per Nazir Ahmad, SI (PW-13) he had taken into possession the book of Islamiyat (P2) through recovery memo (Exh.PG) from the place of occurrence. However, as per Shoukat 2321/C (PW-7), he recorded in his examination in chief that on 26.03.2009 i.e after one day of the occurrence it was the complainant who handed over a book of Islamiyat to the Investigating Officer. A perusal of the above mentioned site plans (Exh.PK and Exh.PN) also reveals that the hostel in which the deceased was allegedly residing is also not shown in the said site plans. Furthermore, to accentuate these omissions in the case of the prosecution, during the whole investigation no witness was got recorded who supported the claim of the prosecution witnesses that the deceased Nadir Aqeel was indeed residing in Gul Muhammad Academy hostel. Learned counsel for the complainant vehemently argued that the place of occurrence was a public place, however, it is very much clear that not a single witness supported the prosecution case who was resident of the said area. Moreover, during the investigation of the case no statement of any witness was recorded from whose shop the witnesses namely Shakeel Ahmad (PW-5), Tanvir Ahmad (PW-8) and Muhammad Akbar (PW-12) had taken dinner which would have substantiated the case of the prosecution. Additionally, no statement of any witness was recorded of the shop from where the deceased had bought the book of Islamiyat.

All these omissions are conspicuous by their absence. In absence of physical proof of the reason for the presence of the witnesses at the crime scene the same cannot be relied upon. In this respect reliance is placed on the case of Muhammad Rafiq v. State (2014 SCMR 1698) wherein the august Supreme Court of Pakistan rejected the claim of witnesses who lived one kilometer away from the occurrence, but on the day of occurrence stated to be present near the spot as they working as labourers, inasmuch as they failed to give any detail of the projects they were working on. Reliance is also placed on the case of Nasrullah alias Nasro v. The State (2017 SCMR 724) wherein the august Supreme Court of Pakistan observed as under:-

“In the case in hand the eye-witnesses produced by the prosecution lived eighty kilometers away from the scene of the crime, their stated reason for presence in the house of occurrence at the time of incident in issue had never been established through any independent evidence.”

14 There is no denial to this fact that Nadir Aqeel lost his life in this unfortunate incident, but the fact remains that the names of the assailants were not mentioned in the oral statement (Exh.PD). Shakeel Ahmad (PW-5) stated that on 26.03.2009 he named out the accused persons. When every detail regarding the assailants was disclosed by Shakeel Ahmad (PW-5) through his statement (Exh.PT), then the holding of test identification parade even otherwise was an exercise in futility. Shakeel Ahmad (PW-5) during his cross examination further revealed that he nominated the accused on 26.03.2009 as the people of the area informed him about the accused persons. The question begs an answer that when the people of the area had already informed Shakeel Ahmad (PW-5) about the details of the accused then for what purpose the test identification parade was held. It was on the description of Shakeel Ahmad (PW-5) that the arrest of the appellants was effected. The description was so clear that out of the whole city of Multan the appellants were identified and arrested. This illustrates the futility of

holding a test identification parade of the appellants who were so clearly named by the complainant.

15. We have also noted that no source of light was mentioned in the oral statement (Exh.PD) of Shakeel Ahmad (PW-5) or the oral statement of Tanvir Ahmad (PW-8) and Muhammad Akbar (PW-12) despite the fact that as per prosecution's own claim the occurrence had taken place during the night. We have also observed that, as it is evident, the occurrence took place at night time and there was no mention of any light source made by Shakeel Ahmad (PW-5), Tanvir Ahmad (PW-8) and Muhammad Akbar (PW-12). When witnesses Shakeel Ahmad (PW-5), Tanvir Ahmad (PW-8) and Muhammad Akbar (PW-12) appeared before the learned trial court and got recorded their statements, even then they failed to mention any light source which could have been available at the place of occurrence at the time of occurrence allowing the witnesses to identify the assailant. Nazir Ahmad, SI (PW-13) during his investigation did not take into possession any article so as to prove that sufficient light was present at the place of occurrence at the time of occurrence for the witnesses to make a positive identity of the assailants. The prosecution failed to establish the fact of such availability of light source and in absence of their inability to do so, we cannot presume the existence of such a light source. Reliance is placed on the case of Gulfam and another v. The State (2017 SCMR 1189) wherein the August Supreme Court of Pakistan observed as under:-

“Courts below had incorrectly presumed that as the occurrence had taken place at a medical store, therefore, some electric light must be available at the spot.”

16. We have also noticed that the test identification parade was not conducted as per the law and in violation of rules of the Police Rules, 1934. The perusal of the proceedings of the test identification parade (Exh.PM) reveals that the said identification parade of three accused was conducted jointly. It is further recorded in the proceedings of the test identification parade (Exh.PM) that all the three accused were made to

sit in front of each other along with the dummies at different serial numbers. The proceedings of test identification parade (Exh.PM) reveals that there is no mention of either the heights of the other prisoners used as dummies, nor the colour their of skin. While recording the oral statement (Exh.PD) the only description, given in the said oral statement (Exh.PD), with regard to the assailants was their ages, complexions and heights. However while holding the test identification parade, Syed Liaqat Ali, Magistrate (PW-10) failed to observe the description of heights, complexions of their skin and weight of the dummies being used during the test identification parade which was necessary to rule out any possibility of misidentification. The August Supreme Court of Pakistan in case of Hakeem and other Vs. The State (2017 SCMR 1546) at page 1550 while enunciating the principles of law relating to the identification parade has held as under:-

“The proper course is to have separate identification parades for each accused”

The August Supreme Court of Pakistan in case of Kamal Din alias Kamala Vs. The State (2018 SCMR 577) at page 580 held as under:-

“Apart from that the test identification parade held in this case was a joint parade wherein two accused persons had been made to stand with dummies in two lines and their identification had taken place simultaneously in one go. This Court has also clarified in the cases of Lal Pasand v. The State (PLD 1981 SC 142), Ziaullah alias Jaji v. The State (2008 SCMR 1210), Bacha Zab v. The State (2010 SCMR 1189), Sahfqat Mahmud and others v. The State (2011 SCMR 537) and Gulfam and another v. The State (2017 SCMR 1189) that the identification of many accused in one go is not proper besides being unsafe.”

Reliance is also placed on the case Crl. Misc. Appln. No.183 of 2019 in Crl.A.No. 259 of 2018 reported as PLJ 2019 SC (Cr.C) 153 wherein the august Supreme Court of Pakistan has issued guidelines in conducting the identification parade and has clearly held that if there are more accused persons when one, **separate identification parade** should ordinarily be held in respect of each accused person. Hence we are

constrained to hold that the identification proceeding is of no evidentiary value.

17 We have also noted with grave concern the statements which were made by the eye witnesses in presence of Syed Liaqat Ali, (PW-10) who supervised the identification parade proceedings (Exh.PM). The case of the prosecution as per the oral statement (Exh.PD) recorded on the statement of Shakeel Ahmad (PW-5) was that Nadir Aqeel (deceased) after receiving the fire died at the spot and the witnesses reported the matter to the police. However, during cross-examination Syed Liaqat Ali, Special Judicial Magistrate (PW-10) and after the perusal of the identification report (Exh.PM) the following facts come to the fore which totally negate the presence of the eye witnesses at the place of occurrence at the time of occurrence. During cross-examination Syed Liaqat Ali, Special Judicial Magistrate (PW-10) stated as under:-

“ It is correct that the complainant Shakeel Ahmad made statement before me that after the occurrence, police came at the spot and we went to our Chachazad Bhai i.e Prof. Nishat. It is further correct that the complainant made statement that the injured was carried to Nishter Hospital, Multan by the police and we came to know the next day in the morning that the injured has passed away. It is further correct that the eye witness namely Tanveer Ahmad S/O Muhammad Haneef also stated that we went to the house of Prof. Nisat our cousin and in the next morning we came to know that Nadir had expired. It is further correct that the PW stated before me that the injured was carried to the hospital by the police and we went to the Professor Nishat's house.”

As there is nothing to suggest that Syed Liaqat Ali, Special Judicial Magistrate (PW-10) added this narrative on his own and the same narrative is also recorded in the identification report (Exh.PM) it clearly establishes that the three eye witnesses namely Shakeel Ahmad (PW-5) or Tanvir Ahmad (PW-8) or Muhammad Akbar (PW-12) were not

present at the place of occurrence at the time of occurrence. As per Dr. Tariq Nawaz Babar (PW-3), the death of Nadir Aqeel (deceased) was instantaneous and the post mortem was delayed by at least 12 hours. It reflects the said eye witnesses were not present and were rather summoned subsequently and hence they made such contrary statements before Syed Liaqat Ali, Special Judicial Magistrate (PW-10). Article 129 of the Qanun-e-Shahadat Order, 1984 allows the courts to presume the existence of any fact, which it thinks likely to have happened, regard being had to the common course of natural events and human conduct in relation to the facts of the particular case. We thus presume the existence of this fact, by virtue of the Article 129 of the Qanun-e-Shahadat Order, 1984, that the conduct of the witnesses, as deposed by them, was opposed to common course of natural events, human conduct and that the witnesses were not present at the time of occurrence at the crime scene.

18. Learned Deputy Prosecutor General has also relied upon the recoveries made from the appellants. With respect to recovery of weapon from the appellants Irfan alias Shani it has been observed that report of Forensic Science Laboratory (Exh.PW) reveals that the empties were received in the Punjab Forensic Science Agency on 04.4.2009 i.e. the date of arrest of the accused by Akhtar Hussain Shah, SI (PW-9). It means that, chances of fabrication of empties cannot be ruled out, therefore, it is not safe to rely upon the alleged recovery of pistol 30-bore from the possession of Irfan alias Shani (appellant) and positive report of Forensic Science Laboratory (Exh. PW). With respect to the recovery of Rs.1500/- from the Ali Abbas (appellant), suffice is to say that no memo of identification of the recovered currency was prepared by the Investigating Officer for them to be considered as relevant and incriminating piece of evidence as against the Ali Abbas (appellant). We have observed that the police did not associate any residents of the locality in the investigation for the purpose of recoveries. The said recovery proceedings were conducted in violation of section 103 of

Cr.P.C. and thus are hit by the exclusionary rule of evidence and cannot be considered. As we have disbelieved the ocular account in this case, hence the evidence of recovery would have no consequence. It is an admitted rule of appreciation of evidence that recovery is only a corroborative piece of evidence and if the ocular account is found to be unreliable then the recovery has no evidentiary value.

19. The only other piece of evidence left to be considered by us is the medical evidence but the same is of no assistance in this case as medical evidence by its nature and character, cannot recognize a culprit in case of an unobserved incidence. As all the other pieces of evidence relied upon by the prosecution in this case have been disbelieved and discarded by us, therefore, the appellant's conviction cannot be upheld on the basis of medical evidence alone. The august Supreme Court of Pakistan in its binding judgment titled "Hashim Qasim and another Vs. The State" (2017 SCMR 986) has enunciated the following principle of law:

"The medical evidence is only confirmatory or of supporting nature and is never held to be corroboratory evidence, to identify the culprit."

20. Considering all the above circumstances, we entertain serious doubt in our minds regarding the involvement of Irfan alias Shani son of Muhammad Hussain and Ali Abbas son of Muhammad Shareef appellants, in the present case. It is settled principle of law that for giving benefit of doubt it is not necessary that there should be so many circumstances rather if only a single circumstance creating reasonable doubt in the mind of a prudent person is available then such benefit is to be extended to an accused not as a matter of concession but as of right. The august Supreme Court of Pakistan in the case of Muhammad Mansha Vs. The State (2018 SCMR 772) has enunciated the following principle:

"Needless to mention that while giving the benefit of doubt to an accused it is not necessary that there should be many circumstances creating doubt. If there is circumstance

which creates reasonable doubt in a prudent mind about the guilt of the accused, then the accused would be entitled to the benefit of such doubt, not as a matter of grace and concession but as a matter of right.”

Reliance is also placed on the judgment of the august Supreme Court of Pakistan Muhammad Akram Vs. the State (2009 SCMR 230) in which it has been observed in paragraph No.13 of page 236 as infra:

“It is an axiomatic principle of law that in case of doubt, the benefit thereof must accrue in favour of the accused as matter of right and not of grace. It was observed by this Court in the case of Tariq Pervez v. The State 1995 SCMR 1345 that for giving the benefit of doubt, it was not necessary that there should be many circumstances creating doubts. If there is circumstance which created reasonable doubt in a prudent mind about the guilt of the accused, then the accused would be entitled to the benefit of doubt not as a matter of grace and concession but as a matter of right.”

21. For what has been discussed above Criminal appeal No.522 of 2014 filed by Irfan alias Shani son of Muhammad Hussain (appellant) and criminal appeal No. 535 of 2014 filed by Ali Abbas son of Muhammad Shareef are accepted and the conviction and sentence of the appellants awarded by the learned trial court through the impugned judgment dated 28.11.2014 are hereby set-aside. Irfan alias Shani son of Muhammad Hussain and Ali Abbas son of Muhammad Shareef (appellants) are ordered to be acquitted. Irfan alias Shani son of Muhammad Hussain (appellant) is directed to be released forthwith if not required in any other case. Ali Abbas son of Muhammad Shareef (appellant) is on bail by way of suspension of his sentence by this Court, therefore, his surety shall stand discharged from his liability and the bail bonds submitted by the appellant are hereby cancelled.

22. Pursuant to the discussion made and conclusions arrived at above, **Criminal appeal No.550 of 2014**, filed against the acquittal of the Irfan alias Shani son of Muhammad Hussain, of the charge of section 394 of

PPC and against Ali Abbas son of Muhammad Sharif, of the charge under section 302 PPC, is hereby dismissed.

23. **Murder Reference** is answered in **Negative** and the death sentence of Irfan alias Shani son of Muhammad Hussain is **Not Confirmed.**

Raheel

(CH. MUSHTAQ AHMAD)
JUDGE

(SADIQ MAHMUD KHURRAM)
JUDGE

Approved for reporting.

Judge